What does apartheid actually mean?

מה זה בכלל אפרטהייד?

Everyone uses the word. So here is what it means under international law, and the 4 questions from the reel, run on real cases.

כולם משתמשים במילה. אז הנה מה שהיא אומרת לפי החוק הבינלאומי, ו-4 השאלות מהסרטון על מקרים אמיתיים.

The legal definition

ההגדרה המשפטית

> UN Apartheid Convention (adopted 30 Nov 1973), Article II: inhuman acts "committed for the purpose of establishing and maintaining domination by one racial group of persons over any other racial group of persons and systematically oppressing them." The Rome Statute of the ICC, art. 7(2)(h), uses the same idea.

The 4 questions

4 השאלות

1. Separate laws by race?
2. No right to vote?
3. Separate buses, schools, beaches?
4. Banned from jobs or land?

The cases

המקרים

- **South Africa, 1948 to 1994:** 4 out of 4. This is apartheid.
- **Afghanistan under the Taliban:** girls barred from school after 6th grade and women from universities since Dec 2022. UN Special Rapporteur Richard Bennett said the Taliban "may be responsible for gender apartheid".
- **Lebanon:** Palestinians are barred from more than 20 high-level professions, and a 2001 law bans them from owning property (Human Rights Watch, 2010). In my view, that is apartheid.
- **Israel:** about 21% of people in Israel are Arab. Arab citizens vote, won 10 Knesset seats in 2022, study in the same universities and have served on the Supreme Court. Same laws, same vote, same courts.

> **Fair note:** Part 2 covers the harder question, the West Bank and Gaza, where Palestinians are not Israeli citizens. Know what a word means before you use it.

Sources

מקורות

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